



Associate Membership Agreement

This ASSOCIATE MEMBERSHIP AGREEMENT (this "Agreement") is entered into by and between NextCorps, Inc. having an address at 260 E. Main Street, Suite 6000, Rochester, NY 14604 and Member specified in Section 1.

NextCorps is a not-for-profit economic development organization whose mission is to be a catalyst for regional economic growth through entrepreneurship and innovation by applying business expertise and network connections to aid in the formation of new companies and to help drive profitable growth in existing companies. In support of its mission, NextCorps provides incubation programs including facilities and services to early stage companies as outlined in this Agreement.

Section 1: Member Information.

Company Name	Theory Network, LLC
Main Contact Name	Andre Davcev
Main Contact Title	Founder
Address	204 Suburban Court, Apt 3
City, State, Zip	Rochester 14620
Phone	585-208-4283
Email	Andre.davcev@gmail.com
Website	Firefly.im

Section 2: Membership Term.

This program runs month-to-month. Membership Fees (defined below) must be received prior to the start of each month to continue participation. Thirty (30) days prior written notice from either NextCorps or Member is required to terminate the membership under this Agreement.

Start date: September 12, 2019

Section 3: Pricing, Invoicing and Payment

\$100.00 per membership per month (the "Membership Fee") for access to the premises located in the NextCorps Condominium on the 6th floor (the "Premises") of the building located at 260 E. Main Street, City of Rochester, Monroe County, New York (the "Property") for use of the Services (as defined below).

Member will pay the Membership Fee to NextCorps monthly in advance. Payment of the Membership Fee is required at the beginning of each month.

Section 4: Services

- One key fob per membership
- Use of "drop in" shared space in the kitchen area and rooftop deck (limited to no more than 8 hours/week during normal business hours; NextCorps reserves the right to modify that limit based upon ongoing space availability)

- Access to NextCorps Staff and Entrepreneurs-in-Residence for assistance (one EIR meeting per month)
- Conference room reservations, on a space available basis (limited to one meeting per week; NextCorps reserves the right to modify that limit based upon ongoing space availability)
- Auditorium and Multi-Media Center rental (additional reduced usage charges apply)
- Internet connectivity within the NextCorps facility
- Photocopying and printing (additional usage charges apply)
- Participation in NextCorps client-only events
- Introductions to regional research and development organizations
- Referrals to appropriate accounting, legal and marketing professionals and other subject matter experts
- Business Incubator Program Agreement
 - NextCorps, through its staff or volunteer resources, will provide support services to the Member. The extent and specific nature of these services will be negotiated with the Member periodically. These services may include:
 - Business plan review
 - Connection with technical, professional, marketing, and advisory resources
 - Management coaching
 - Assistance identifying and applying for government funding such as SBIRs
 - Other services mutually agreed
- Active participation in NextCorps' Business Incubator Program is expected

Section 5: Compliance with EDA Restrictive Covenants

NextCorps and Member acknowledge that the Premises were improved, in part with funding from the United States Economic Development Administration (EDA), United State Department of Commerce, EDA Project No.: 01-01-14720 and are subject to the terms and conditions of the EDA financial assistance award and applicable EDA Property Management regulations. Consequently, NextCorps and Member agree as follows:

a. Real property acquired or improved with EDA Investment Assistance must be used in a manner that is consistent with the authorized general and specific purposes of the financial assistance award, in this case the creation of a business incubator/accelerator, and EDA policies including non-relocation, adequate consideration and environmental compliance. Further, said property may not be used in violation of the nondiscrimination requirements set forth in 13 C.F.R. 302.20 or for inherently religious activities prohibited by applicable federal law.

b. Member agrees to provide NextCorps and/or EDA with any document, evidence or report required to assure compliance with federal and state law, including but not limited to applicable federal and state environmental laws.

Section 6: Use of Services.

Member, when participating in or using the Services, will not:

- Disturb other members and will recognize their right to quiet enjoyment of the Premises. Member shall not listen to radios and other such equipment except with headphones; will conduct phone conversations quietly, and ensure that all noise that might disturb other members be kept at a minimum.
- Lend key fobs or give codes to anyone.
- Bring pets into the Premises at any times.

- Place any signs or lettering anywhere in the Premises.

Section 7: Use.

- Member shall use the Premises for general office use and for no other purpose.
- Member shall, at its sole expense, comply with all applicable laws relating to its use of the Premises during the Membership Term.
- Member shall not cause or permit any hazardous materials to be released, brought upon, stored, produced, emitted, disposed of or used upon, about or beneath the Premises by Member, its agents, employees, contractors or invitees, except those hazardous materials customarily used in the conduct of general administrative office activities (e.g. copier fluids and cleaning supplies), provided that such use and storage is in full compliance with all applicable laws. Member shall defend, indemnify and hold NextCorps harmless from and against any and all damage, loss, claim, obligation, liability, cost (including reasonable attorneys' fees and expenses), expense, deficiency and interest charges (collectively "Loss and Expense") which arise from the presence upon, about or beneath the Premises of any hazardous materials which are released, brought upon, stored, produced, emitted, disposed of or used upon, about or beneath the Premises by Member, its employees, servants, customers, invitees, licensees or contractors.

Section 8: Liability.

- NextCorps shall not be liable for any damage to the person or property of Member by theft or from any other cause, or for any injury or damage to persons or property or loss or interruption to business resulting from fire, explosion, falling plaster, steam, gas, electricity, water, rain or snow, or leaks from any part of the Premises or from the pipes, appliances, or plumbing works or from the roof, street, or subsurface, or from any other place, or dampness or by any other cause whatsoever unless caused by or due to the negligence of NextCorps in its operation and maintenance of the Premises.
- To the extent permitted by applicable law, Member covenants and agrees to defend, indemnify and hold NextCorps harmless from and against all Loss and Expense incurred or suffered by NextCorps for personal injury, disease, death, property damage, or otherwise arising out of (i) Member's failure to comply with its obligations under this Agreement and/or (ii) the occupancy by Member or any person or entity claiming under Member of the Premises or any part thereof. Member's obligations pursuant to this Subsection 8 shall survive the termination of this Agreement.

Section 9: Confidentiality.

- a. Member acknowledges and agrees that during its participation in and use of the Services you may be exposed to Confidential Information, "Confidential Information" shall mean all information, in whole or in part, that is disclosed by NextCorps or any participant or user of the Services or any employee affiliate, or agent thereof, that is non-public, confidential or proprietary in nature. Confidential Information also includes, without limitation, information about business, sales, operations, know-how, trade secrets, business affairs, any knowledge gained through examination or observation of or access to the facilities, computer systems and/or books and records of NextCorps, any analyses, compilations, studies or other documents prepared by NextCorps or otherwise derived in any manner from the Confidential Information

that you are obliged to keep confidential or know or has reason to know should be treated as confidential.

- b. Member's participation in and/or use of the Services obligates it to:
 - 1. Maintain all Confidential Information in strict confidence;
 - 2. Not to disclose Confidential Information to any third parties;
 - 3. Not to use the Confidential Information in any way directly or indirectly detrimental to NextCorps or any participant or user of the Services;
 - 4. All Confidential Information remains the sole and exclusive property of NextCorps or the respective disclosing party. Member acknowledges and agrees that nothing in the Agreement or its participation or use of the Services will be construed as granting any rights to it, by license or otherwise, in or to any Confidential Information or any patent, copyright or other intellectual property proprietary rights of NextCorps or any participant or user of the Services.
- c. Information Disclosure: NextCorps reserves the right at all times to disclose any information about Member, its participation in and use of the Services as NextCorps deems necessary to satisfy any applicable law, regulation, legal process, or governmental request, or to edit, refuse to post or to remove any information or materials, in whole or in part, in NextCorps' sole discretion.

Section 10: Disclaimer of Warranties.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NEXTCORPS PROVIDES THE SERVICES "AS IS" AND WITH ALL FAULTS, AND HEREBY DISCLAIM WITH RESPECT TO THE SERVICES ALL WARRANTIES AND CONDITIONS, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING, BUT NOT LIMITED TO, ANY (IF ANY) WARRANTIES, DUTIES OR CONDITIONS OF OR RELATED TO: MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, LACK OF VIRUSES, ACCURACY OR COMPLETENESS OF RESPONSES, RESULTS, WORKMANLIKE EFFORT AND LACK OF NEGLIGENCE. BY OCCUPYING THE PREMISES, MEMBER AGREES THAT THE PREMISES ARE IN GOOD ORDER AND SATISFACTORY CONDITION. ALSO, THERE IS NO WARRANTY, DUTY OR CONDITION OF TITLE, QUIET ENJOYMENT, QUIET POSSESSION, CORRESPONDENCE TO DESCRIPTION OR NON-INFRINGEMENT. THE ENTIRE RISK AS TO THE QUALITY, OR ARISING OUT OF PARTICIPATION IN OR THE USE OF THE SERVICES, REMAINS WITH MEMBER.

Section 11: Exclusion of Incidental, Consequential and Certain Other Damages.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL NEXTCORPS OR ITS SUBSIDIARIES (WHETHER OR NOT WHOLLY-OWNED), AFFILIATES, DIVISIONS, AND THEIR PAST, PRESENT AND FUTURE OFFICERS, AGENTS, SHAREHOLDERS, MEMBERS, REPRESENTATIVES, EMPLOYEES, SUCCESSORS AND ASSIGNS, JOINTLY AND INDIVIDUALLY BE LIABLE FOR ANY DIRECT, SPECIAL, INCIDENTAL, INDIRECT, PUNITIVE, CONSEQUENTIAL OR OTHER DAMAGES WHATSOEVER (INCLUDING, BUT NOT LIMITED TO, DAMAGES FOR: LOSS OF PROFITS, LOSS OF CONFIDENTIAL OR OTHER INFORMATION. BUSINESS INTERRUPTION, PERSONAL INJURY, LOSS OF PRIVACY, FAILURE TO MEET ANY DUTY (INCLUDING ANY DUTY OF GOOD FAITH OR OF REASONABLE CARE), NEGLIGENCE, AND ANY OTHER PECUNIARY OR OTHER LOSS WHATSOEVER) ARISING OUT OF OR IN ANY WAY RELATED TO THE PARTICIPATION IN OR AN ABILITY TO PARTICIPATE IN OR USE OF THE SERVICES, THE PROVISION OF THIS AGREEMENT, EVEN IN THE EVENT OF THE FAULT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, BREACH OF CONTRACT OR BREACH OF WARRANTY OF NEXTCORPS, AND EVEN IF NEXTCORPS HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. BECAUSE SOME STATES/JURISDICTIONS DO NOT ALLOW THE EXCLUSION OR LIMITATION OF LIABILITY FOR CONSEQUENTIAL OR INCIDENTAL DAMAGES, THE ABOVE LIMITATION MAY NOT APPLY TO MEMBER.

Section 12: Limitation of Liability and Remedies.

NOTWITHSTANDING ANY DAMAGES THAT MEMBER MIGHT INCUR FOR ANY REASON WHATSOEVER (INCLUDING WITHOUT LIMITATION, ALL DAMAGES REFERENCED ABOVE AND ALL DIRECT OR GENERAL DAMAGES), THE ENTIRE LIABILITY OF NEXTCORPS OR ITS SUBSIDIARIES (WHETHER OR NOT WHOLLY-OWNED), AFFILIATES, DIVISIONS, AND THEIR PAST, PRESENT AND FUTURE OFFICERS, AGENTS, SHAREHOLDERS, MEMBERS, REPRESENTATIVES, EMPLOYEES, SUCCESSORS AND ASSIGNS UNDER ANY PROVISION OF THIS AGREEMENT AND MEMBER'S EXCLUSIVE REMEDY FOR ALL OF THE FOREGOING SHALL BE LIMITED TO ACTUAL DAMAGES INCURRED BY MEMBER BASED ON REASONABLE RELIANCE UP TO TEN DOLLARS (USD \$10.00). THE FOREGOING LIMITATIONS, EXCLUSIONS AND DISCLAIMERS, (INCLUDING SECTIONS 9 AND 10 ABOVE) SHALL APPLY TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, EVEN IF REMEDY FAILS ITS ESSENTIAL PURPOSE.

Section 13: Termination.

Notwithstanding anything contained herein to the contrary, NextCorps reserves the right to terminate any Service at any time. NextCorps further reserves the right to terminate Member's participation in and use of any Services, immediately and without notice, if Member fails to comply with the terms of this Agreement.

Section 14: Indemnification.

Member releases, and hereby agrees to indemnify, defend and save harmless NextCorps, affiliates, divisions, and their past, present and future officers, agents, shareholders, members, representatives, employees, successors and assigns, jointly and individually, from and against all claims, liabilities, losses, damages, costs, expenses, judgments, fines and penalties based upon or arising out of Member's negligent actions, errors and omissions, willful misconduct and fraud in connection with the participation in or use of the Services. Member further agrees in the event that it brings a claim or lawsuit in violation of this Agreement, Member shall be liable for any attorney's fees and costs incurred by either NextCorps or its respective officers and agents in connection with the defense of such claim or lawsuit.

Section 15: Severability.

In the event that any provision or portion of this Agreement is determined to be invalid, illegal or unenforceable for any reason, in whole or in part, the remaining provisions of this Agreement shall be unaffected thereby and shall remain in full force and effect to the fullest extent permitted by applicable law.

Section 16: Insurance.

As a user of the Premises, it is strongly suggested that Member carry an insurance policy to cover its own equipment and personal property while using the Premises. NextCorps shall not be liable for any damage to the person or property of Member by theft or from any other cause, or for any injury or damage to persons or property or loss or interruption to business resulting from fire, explosion, falling plaster, steam, gas, electricity, water, rain or snow, or leaks from any part of the Property or from the pipes, appliances, or plumbing works or from the roof, street, or subsurface, or from any other place, or dampness or by any other cause whatsoever unless caused by or due to the negligence of NextCorps in its operation and maintenance of the Premises.

Section 17: Agreement as License.

This Agreement constitutes a license to use the Premises in accordance with the terms of this Agreement and not in any way constitutes a lease or sub-lease.

Section 18: Member's use of the Premises.

Member understands other persons and entities will have access to the Premises and therefore Member shall not interfere with other persons or entities use of the Premises. Member understands that Member shall not have the permanent use of any space in the Premises except under separate written agreement with NextCorps.

Section 19: Miscellaneous.

- a. This Agreement shall inure to the benefit of and bind the parties hereto and their successors, heirs, and assigns.
- b. This Agreement shall constitute the entire Agreement between the parties.
- c. This Agreement shall be governed by the laws of the State of New York.
- d. This Agreement may be amended or supplemented only by a written instrument signed by both parties.
- e. This Agreement may be executed in any number of identical counterparts each of which shall be considered an original but together shall constitute but one and the same Agreement.
- f. The captions or paragraph headings are for the convenience and ease of reference only and shall not be construed to limit or alter the terms of this Agreement.

Section 20: Notices.

Any notices under this Agreement shall be delivered in person, by US mail, email, or facsimile or other such service to the Member at the address shown in Section 1. Any notices under this Agreement shall be delivered in person, by US mail, email, or facsimile or other such service to NextCorps at the address shown in the first paragraph of this Agreement.

I hereby acknowledge that I have read and understood all of the terms and conditions contained in this Agreement and further agree to be bound by those terms and conditions regarding my participation in and use of the Services.

Signature: Andre R Davcev

Date: 9/12/19

Name (Print): Andre R Davcev

Accepted by:

Signature: James S. Senall
James S. Senall, President
NextCorps, Inc.

Date: 9/12/19

EXHIBIT C

Premises Rules & Regulations

1. Member will not make or permit to be made any use of the Premises or any part thereof which would violate any of the covenants, agreements, terms, provisions and conditions of this Agreement or which directly or indirectly is forbidden by public law, ordinance or governmental regulation or which may be dangerous to life, limb, or property, or which may invalidate or increase the premium cost of any policy of insurance carried on the Premises or covering its operation or which will suffer or permit the Premises or any part thereof to be used in any manner including storage therein which, in the judgment of NextCorps, shall in any way impair or tend to impair the character, reputation or appearance of the Premises as high quality office space or which will impair or interfere with or tend to impair or interfere with any of the services performed by NextCorps for the Premises.
2. NextCorps shall provide an interior directory on which the names of Members shall be placed. Member shall not display, inscribe, print, paint, maintain or affix on any place in or about the Premises any sign, notice, legend, direction, figure or advertisement without consent from NextCorps.
3. Member must notify NextCorps in advance of intent to use any picture or likeness of the facility in any circulars, notices, advertisements or correspondence.
4. No additional locks or similar devices shall be attached to any door without NextCorps' prior written consent.
5. Solicitation or peddling (i.e. fund raising, Girl Scout cookies, etc.) within the Premises or on the Property is forbidden. NextCorps may exclude or expel any peddler or solicitor. This does not prohibit solicitation within the Member's suite of employees by fellow employees.
6. Member shall not overload any floor. NextCorps may direct the time and manner of delivery, routing and removal of all items that are delivered to the Premises for Member's use and may specify the location of safes and other heavy articles.
7. Unless NextCorps gives advance written notice, Member shall not install or operate any steam or internal combustion engine, machinery, refrigeration or heating device or air condition apparatus in or about the Premises, or carry on any mechanical business therein, or use the Premises for housing accommodations or lodging or sleeping purposes, or do any cooking therein, or use any illumination other than electric light, or use or permit to be brought into the Premises any flammable fluids such as gasoline, kerosene, naphtha, benzine and solvents, or any explosives, radioactive materials or other articles deemed extra hazardous to life, limb or property except in a manner which would not violate any ordinance or regulation or any condition imposed by the standard fire

insurance policy issued for office buildings in the City of Rochester, or do or permit anything to be done, or keep or permit anything to be kept, in the Premises, which would increase the fire or other casualty insurance rate on the Premises or the property therein, or which would result in insurance companies of good standing refusing to insure the Premises or any such property in amounts reasonably satisfactory to NextCorps.

8. Member shall cooperate fully with NextCorps to assure the effective operation of the Premises air-conditioning system, including the closing of blinds.
9. The sidewalks, halls, passages, exits, entrance, elevator and stairways shall not be obstructed by Member or used for any purpose other than for ingress to and egress from its Premises. The halls, passages, exists, entrances, elevators, stairways and roof are not for the use of the general public and NextCorps shall in all cases retain the right to control and prevent access thereto by all persons whose presence, in the judgment of NextCorps, shall be prejudicial to the safety, character, reputation and interests of the Premises and its Members, provided that nothing herein contained shall be construed to prevent such access to persons with whom Member normally deals in the ordinary course of Member's business unless such persons are engaged in illegal activities. No Member and no employees or invitees of any Member shall go upon the roof (other than the NextCorps Rooftop Deck) or into the mechanical rooms of the Premises.
10. Member shall not affix any adornment to the windows, doors, common areas or exterior of the building.
11. Window coverings must not be altered in any way. Window coverings must not be removed nor shall additional coverings be added. Decorations or adornments shall not be affixed to window coverings or displayed in such a manner to be visible from the exterior of the building.
12. Members who want to hang pictures, whiteboards, etc. should not do it themselves but make arrangements with NextCorps.
13. Member shall not use, keep or permit to be used or kept any foul or noxious gas or substance in the Premises, or permit or suffer the Premises to be occupied or used in a manner offensive or objectionable to NextCorps or other occupants of the Premises by reason of noise, odors and/or vibrations, or interfere in any way with other Members or those having business therein, nor shall any animals or birds be brought in or kept in or about the Premises.
14. Member shall see that the doors, and windows, if operable, are closed and securely locked before leaving the Premises and must observe strict care and caution that all water faucets or water apparatus are entirely shut off before Member or Member's employees leave the Premises, and that all electricity shall likewise be carefully shut off so as to prevent waste or damage.
15. There shall not be used in any space, or in the public halls of the building, either by any

Member or by jobbers or others, in the delivery or receipt of merchandise, any hand trucks, except those equipped with rubber tires and side guards. All removals or the carrying in or out of any freight, furniture or bulky matter of any description must take place during the hours which NextCorps may determine from time to time. NextCorps reserves the right to inspect all freight to be brought into the building and to exclude from the building all freight which violates any of the Rules and Regulations or the Agreement of which these Rules and Regulations are a part.

16. Member and its employees, agents, customers, and visitors shall be prohibited from using tobacco products inside the building or on the grounds. The entire Property including the Rooftop Deck is designated as Non-Smoking.
17. Members must comply with local and state recycling provisions.
18. If Member desires to install signaling, telegraphic, telephonic, protective alarm or other wires, apparatus or devices within the Premises, NextCorps shall direct where and how they are to be installed and, except as so directed, no installation, boring or cutting shall be permitted. NextCorps shall have the right (a) to prevent or interrupt the transmission of excessive, dangerous or annoying current of electricity or otherwise into or through the Premises, the building and/or the Property, (b) to require the changing of wiring connections or layout at the Member's expense, to the extent that NextCorps may deem necessary, (c) to require compliance with such reasonable rules as NextCorps may establish relating thereto, and (d) in the event of noncompliance with such requirements or rules, immediately to cut wiring or do whatever else it considers necessary to remove the danger, annoyance or electrical interference with apparatus in any part of the building and/or the Property. Each wire installed by the Member must be clearly tagged at each distributing board and junction box and elsewhere where required by NextCorps, with the number of the office to which such wire leads and the purpose for which it is used, together with the name of the Member or other concern, if any, operating or using it.
19. NextCorps reserves the right to institute energy management procedures when necessary. Any future modifications to the Premises Rules and Regulations promulgated by NextCorps shall become binding upon Member upon NextCorps giving Member notice of such modifications.